

TENTATIVE RULINGS 5-28-26
Department R17- Judge Gilbert G. Ochoa

This court follows California Rules of Court, rule 3.1308(a) (1) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings for each law & motion will be posted on the internet (<https://www.sb-court.org>) by 3:00 p.m. on the court day immediately before the hearing.

If you do not have internet access or if you experience difficulty with the posted tentative ruling, you may obtain the tentative ruling by calling the Administrative Assistant. You may appear in person at the hearing but personal appearance is not required and remote appearance by CourtCall is preferred during the Pandemic. (See www.sbcourt.org/general-information/remote-access)

If you wish to submit on the ruling, call the Court, check-in and state that you will be submitting on the Tentative, and your appearance is not necessary. But you must check in.

If both sides do not appear, the tentative will simply become the ruling.

If any party submits on the tentative, the Court will not alter the tentative and it will become the ruling.

If one party wants to argue, Court will hear argument but will not change the tentative.

If the Court does decide to modify tentative after argument, then a further hearing for oral argument will be reset for both parties to be heard at the same time by the Court.

This procedure is meant to minimize your waiting time in Court.

O&C BROS TRANSPORTATION INC., et. al.

v.

RIVER OAKS TRUCKING INC., et. al.

CIVRS2510113

Motion: Compel Further Responses to Requests for Production of Documents

Movant: Plaintiff O&C Bros Transportation Inc.

Respondent: Defendant River Oaks Trucking Inc.

DISCUSSION

Statement of the Law

A party who deems responses to propounded interrogatories (form or special) or request for admissions as evasive or incomplete; or an objection is without merit or too general; or the exercise of the option to produce documents is unwarranted or the required specification of those

documents is inadequate can move to compel further responses. (Code Civ. Proc., §§2030.300(a), 2033.290(a).) Similarly, a party who deems a statement of compliance with a document demand as incomplete; or the representation of inability to comply as inadequate, incomplete or evasion; or an objection to a document demand as without merit or too general can move to compel further responses. (Code Civ. Proc., §2031.310(a).)

The motion to compel further responses must be served within 45 days of receipt of the responses (plus the additional time if served by mail). (Code Civ. Proc., §§2030.300(c), 2031.310(c), 2033.290(c).) The motion to compel must be accompanied by a declaration stating facts showing a reasonable and good faith attempt to resolve informally the issues presented by the motion before filing the motion. (Code Civ. Proc., §§2030.300(b), 2031.310(b)(2), 2033.290(b), 2016.040.) Additionally, on a motion to compel related to a document request, the moving party must set forth specific facts showing good cause justifying the discovery sought by the demand. (Code Civ. Proc., §2031.310(b)(1).)

The Court shall impose monetary sanctions against any party, person or attorney who unsuccessfully makes or opposes a motion to compel further responses, unless the court finds that the party subject to sanctions acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (Code Civ. Proc., §§2030.300(d), 2031.310(h), 2033.290(d).)

Analysis

This motion and the opposition each have several defects. First, both sides are corporate entities appearing in a self-represented capacity, which is not permitted. “[A] corporation, unlike a natural person, cannot represent itself before courts of record in propria persona, nor can it represent itself through a corporate officer, director or other employee who is not an attorney. It

must be represented by licensed counsel in proceedings before courts of record.” (*CLD Construction, Inc. v. City of San Ramon* (2004) 120 Cal.App.4th 1141, 1145.) Therefore, the Court advises both sides that counsel must be retained in order to proceed with this action as to the corporations, although the individuals may continue to represent themselves.

The motion asserts the subject discovery was served on “Defendants” on an unspecified date; that objection-only responses were served; and that Plaintiff sought to resolve the dispute through meet and confer correspondence. No dates are provided, so the Court cannot assess whether the motion or responses were timely served. Although Cheng provides a supporting declaration, the actual requests for production and responses are not provided.

Cheng also provides a separate statement indicating three RFPs are at issue seeking all documents reflecting payments made to O&C since January 1, 2022; all cancelled checks, wire confirmations, bank statements, or payment records reflecting payments made by River Oaks or Yilong Express Inc. (Yilong) to O&C; and all documents reflecting any financial transactions between River Oaks Trucking and Yilong since 2022.

The separate statement seems to summarize or paraphrase the responses rather than quoting them verbatim in full. For example, one response purportedly reads: “Defendant objected on the grounds of privacy and irrelevance and refused to produce documents beyond limited information.”

In opposition, River Oaks argues it need not respond because Plaintiffs have not produced the foundational evidence necessary to establish the alleged agreement underlying the lawsuit. River Oaks further argues Plaintiff has not produced any corporate authorization of Cheng Ouyang, who purportedly acted on Plaintiff’s behalf in the transactions at issue. River Oaks further argues Plaintiff has not produced complete communication records.

Defendant's argument does not justify failure to respond to proper inquiries, as Plaintiff is not required to prove its case before requesting discovery. Nevertheless, the Court denies the motion because (1) authenticated copies of the RFPs and responses are not before the Court; (2) the Court cannot assess whether the motion is timely because no information is given regarding when responses were served; (3) the nature and timing of meet and confer efforts are not provided; (4) the responses do not appear to be quoted verbatim in the separate statement; and (5) Plaintiff fails to explain who Yilong is or its connection to this litigation.

Ruling

The Court rules as follows:

1. Both sides are advised that corporations may not be self-represented and must be represented by counsel, although the individual parties may continue to represent themselves.
2. Deny Plaintiff's motion to compel further responses to requests for production of documents.

Movant to give notice.

Dated-

Judge